



**Order under Sections 89, 135
Residential Tenancies Act, 2006**

Citation: Khan v Xiao, 2025 ONLTB 96269

Date: 2025-12-18

File Number: LTB-L-041217-25
LTB-T-041956-25

In the matter of: 1803, 181 BEDFORD RD
TORONTO ON M5R0C2

Between: Fayyaz Khan Landlord

And

Sen (Richard) Xiao Yimo Former Tenants
(Kelsey) Cui

Fayyaz Khan (the 'Landlord') applied for an order requiring Sen (Richard) Xiao and Yimo (Kelsey) Cui (the 'Former Tenants') to pay the Landlord's reasonable out-of-pocket costs that the Landlord incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Former Tenants, another occupant of the rental unit or someone the Former Tenants permitted in the residential complex. This is the L10 Application.

The Former Tenants applied for an order determining that the Landlord collected or retained money illegally. This is the T1 Application.

An Adjudicative Case Conference was held by videoconference on November 19, 2025.

The Landlord, and the Landlord's Agent, Yayyaba Khan, attended the case conference.

As of 11:33 a.m., the Former Tenants were not present or represented at the case conference although properly served with notice of this case conference by the Landlord and the LTB. There was no record of a request to adjourn the hearing. As a result, the case conference proceeded with only the Landlord's evidence.

Determinations:

L10 Application

1. As explained below, the Landlord proved the allegations contained in the application on a balance of probabilities. Therefore, the Former Tenants shall pay the Landlord \$1,090.00.
2. I am satisfied that the Landlord served the Former Tenants with the application and Notice of Hearing at least 30 days before the hearing in accordance with Rule 3.3 of the LTB's Rules of Procedure.
3. I am satisfied that the Landlord served the Former Tenant with the application and Notice of Hearing using a method permitted in subsection 191(1.0.1) of the *Residential Tenancies Act, 2006* (the 'Act') and Rule 3.3 of the LTB's Rules of Procedure.
4. The Former Tenants were notified of the Landlord's application by email on May 23, 2025 and the Former Tenants acknowledged the Landlord's email. The Notice of Hearing was delivered to the Former Tenants by the LTB on August 1, 2025. The Former Tenants were provided with the Landlord's disclosure on November 10, 2025 by email.
5. The Former Tenants vacated the rental unit on April 30, 2025.

Compensation for damage

8. For the reasons that follow, I am satisfied on a balance of probabilities that the Former Tenants, another occupant of the rental unit or a person whom the Former Tenants permitted in the residential complex wilfully or negligently caused undue damage to the rental unit or residential complex.
9. In her uncontested testimony, the Landlord stated that on August 15, 2024, she was contacted by email by the condominium corporation's property management company, advising that the Former Tenant, Sen (Richard) Xiao, was observed on video surveillance entering the fitness centre, located within the residential complex, and damaging a mirror. The email also indicated that, as a result of the Former Tenant's ongoing behaviour, their access to the fitness centre had been suspended.
10. The Landlord submitted an invoice from Central Glass & Mirror Ltd. [DOC-5665165] as evidence. This invoice shows the replacement of a gym mirror in the amount of \$904.00 including H.S.T. The Landlord testified she paid this amount to the condominium's property management company.

11. Based on the uncontested evidence and submissions before me, I am satisfied that the Former Tenants wilfully or negligently caused undue damage to the rental unit or residential complex by damaging the mirror in the fitness centre.
12. I am also satisfied the Landlord incurred reasonable costs of \$904.00 to repair the damage and/or replace property that was damaged and cannot reasonably be repaired.
13. As a result, the Landlord's application is granted, and the Former Tenants shall pay the Landlord \$904.00.
14. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.

T1 Application

15. Since the Former Tenants did not attend the Adjudicative Case Conference to support their application, I find this application has been abandoned.

It is ordered that:

L10 Application

1. The Former Tenants shall pay to the Landlord \$904.00, which represents the reasonable costs the Landlord incurred as a result of the damage.
2. The Former Tenants shall also pay to the Landlord \$186.00 for the cost of filing the application.
3. The total amount the Former Tenants owe the Landlord is \$1,090.00.
4. If the Former Tenants do not pay the Landlord the full amount owing on or before December 29, 2025, the Former Tenants will start to owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.

T1 Application

5. The Former Tenants' application is dismissed.

December 18, 2025

Date Issued

Susan Priest

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.